

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2018 OF 2016

Mohammad Ali

..... Applicant-petitioner- petitioners

-Versus-

Maleka Bhanu (Parveen) and others

.....Proforma-Opposite party- Opposite
Parties

Mr. Abdul Quayum with

Mr. Md. Mizanur Rahman, Advocates

..... For the Petitioner

Mr. S. M. Arif, Advocate

..... For the Opposite Parties

Heard on: 18.05.2017

Judgment on: 25.05.2017.

At the instance of the present applicant-petitioner- petitioners, Mohammad Ali, leave was granted and this Rule has been issued calling upon the opposite party Nos. 1-3 to show cause as to why the impugned judgment and order dated 15.02.2016, passed by the learned Additional District Judge, 1st Court, Chittagong in Civil Revision No. 15 of 2013 rejecting the revisional application and hereby affirming the order dated 01.11.2012 passed by the learned Joint District Judge, 1st Court, Chittagong in Succession Miscellaneous Case No. 353 of 2010 should not be set aside.

The relevant facts for disposal of this Rule, inter-alia are that, the present opposite parties as the applicants filed the Succession Miscellaneous Case No. 353 of 2010 in the Court of learned District Delegated Judge, Chittagong for a succession certificate under the Succession Act, 1925 as the heirs of late Mofazal Ahmed who died on 31.08.2004. The said case is pending. The application for succession certificate contains that the said Mofazal Ahmed died leaving behind the present opposite party No. 1 Maleka Bhanu (Parveen) as his second wife, opposite party No. 2 Afzal Hossain (Shaheen) and opposite party No. 3, Mokbul Hossain (Sabbir) as the sons his marriage therefore they are entitled to get a succession certificate along with other heirs being the present petitioner Mohammad Ali, the son, Golnagar Begum as the first wife and Nur Nahar as his daughter from the first marriage. The said application was made by a security money with the Gulistan Film Corporation, 2 Bangabandhu Anenue, Gulistan Bhaban, P.S. Motijheel, Dhaka on account of a security money of Taka 1,00,000/-(one lac).

The present petitioner and others appeared in suit.

During the pendency of the said case, the present petitioner filed an application under Order 7 Rule 14 of the C.P.C. for submitting some vital original documents relevant for a succession certificate. After hearing the parties the said application was rejected on 01.11.2012 on the ground that the original document has already been filed. Being aggrieved the present petitioner filed the Civil Revision No. 15 of 2013

which was also dismissed by the learned Additional District Judge, 1st Court, Chittagong. This revisional application has been filed under Section 115(4) of the Code of Civil Procedure and a leave has been granted and the Rule has been issued thereupon.

Mr. Abdul Quayum, the learned Senior Advocate, appeared along with learned Advocate, Mr. Md. Mizanur Rahman, submits that the learned Courts below failed to understand the legal provision for obtaining a succession certificate as such unlawfully rejected the application for submitting the original documents by the trial court and the learned revisional court below also misunderstood and misconstrued the relevant laws which led them to find against the present petitioner therefore the Rule should be made absolute. The learned Advocate also submits that under Section 370 of the Succession Act, 1925, the requirement is to show a security with the specific kind of document issued by the specific authorities described under Sub-section 2, of Section 370 of the Act, 1925, therefore, a photocopy of “মাসিক ভাড়ার চুক্তিনামা” dated 11.03.1987 (২৬শে ফাল্গুন, ১৩৯৩) to have been executed on 29.11.1393, B.S. which is not within the requirement of Section 370, Act, 1925, therefore, a photocopy of monthly tenancy is not a valid security.

The Rule has been opposed by the present opposite party Nos. 1-3. The learned Advocate, Mr. S. M. Arif, appearing for the opposite parties No. 1-3 submits that, as the legal heirs of the deceased Mofzal

Ahmed the present opposite parties as the applicant filed the Succession Misc. Case by imploding all the other heirs of said late Mofzal Ahmed including the present petitioner and opposite party No. 4 and 5 namely Golnahr Begum as the 1st wife of the deceased. But the present petitioner instead of contesting the case filed an application for original papers which was rejected and the revisional application under Section 115(2) of the Code of Civil Procedure was also dismissed therefore both the Courts below concurrently found the application for succession certificate was properly filed which is pending for disposal as such this Rule is liable to be discharged. The learned Advocate also submits that both the Courts have been satisfied as all original documents were submitted and the succession Misc. case could have been disposed of within earliest possible time but the present petitioner obtain the present Rule in order to delay the disposal of the succession case.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under Section 115(4) of the Code of Civil Procedure along with the annexure therein and also considering the materials in the lower court record, it appears that after the death of Mofzal Ahmed on 31.08.2004 the present opposite parties as the applicants filed a Succession Misc. Case by imploding the present petitioner and other members of the first marriage of the said late Mofzal Ahmed in order to get a succession certificate. While the said case has been pending the present petitioner as the first

wife and children from the marriage filed an application that succession case has not been properly filed as per provision of law because the vital document of security money was not in the original form rather it has been created. However, both the Courts found that the documents submitted by the present applicant opposite parties were sufficient for issuing a succession certificate which aggrieved the present petitioner.

I have carefully examined the document filed as the security required for a succession certificate under Section 370 of the Section Act, 1925. In particular, Section 370 Sub-Section (2) of the Act, 1925, for convenience, is reproduced below:

“370.(1)A succession certificate (hereinafter in this part referred to as a certificate) shall not be granted under this part with respect to any debt or security to which a right is required by section 212 or section 213 to be established by letters of administration or probate:

Provided that nothing contained in this section shall be deemed to prevent the grant of a certificate to any person claiming to be entitled to the effects of a deceased Bangladesh Christian, or to any part thereof, with respect to any debt or security, by reason that a right thereto can be established by letters of administration under this Act.”

After considering the above provisions of law and also considering the documents submitted by the present opposite party as the applicant of the Misc. Case No. 353 of 2010 a deed being “মাসিক ভাড়ার

চুক্তিনামা” for the tenure of one year beginning from 11.03.1987 (২৬ ফাল্গুন, ১৩৯৩). The present petitioner has strongly opposed the validity of the said deed is not an original deed and the said deed does not contain any amount as the security money of Taka 1,00,000/- (one lac). In view of the above conflicting factual aspects, I am of the opinion that the above document cannot be considered to be a valid document under the provision of Section 370 of the Act, 1925. I have a serious doubt as to the prospect of the present Succession Misc. Case pending in the Joint District Delegated Judge, 1st Court, Chittagong.

In view of the above discussion I am certain that both the parties would require a succession certificate to deal with the properties, both movable and immovable as well as the liquid money in any account, any bank or any institution but the pending Succession Case cannot give any conclusive result for that purpose. Therefore, both the parties should take necessary steps in order to get a succession certificate as per the provisions of law, I am therefore inclined to dispose of this Rule with the following direction.

Accordingly, leave granting order and the Rule are hereby disposed of with directions.

The judgment and order passed by the learned Trial Court and the revisional court and hereby set aside.

The present opposite parties, Maleka Bhanu (Parveen) and others as the successors of the late Mofzal Ahmed are hereby directed to make

an application for amendment of the Succession Misc. Case No. 353 of 2010 in order to provide a valid document for obtaining a certificate or to file a fresh Succession Misc. Case within 6(six) months from the date of receipt of this judgment and order with the valid and lawful documents by imploding all the necessary parties including the present petitioner and others.

On failure to file a case as per the above direction within 6(six) months from the date of receipt of this judgment and order, the present petitioner, Mohammad Ali and the present proforma-opposite parties, Nur Nahar, Golnagar Begum are hereby directed to file a succession case with the proper documents required under the law to establish the legal successors of the said deceased Mofazal Ahmed.

The above directions, are passed to resolve the disputes between the parties without causing any multiplicity of the cases.

The office is directed to communicate this judgment and order to the concern Court immediately and also directed to send down the lower courts records at once.